



CHAPTER xcix.

An Act to confirm a Provisional Order of the A.D. 1930.
Minister of Health relating to Hexham.
[10th July 1930.]

WHEREAS under the provisions of the Public Health 38 & 39 Vict.
Act 1875 the Minister of Health has made a c. 55.
provisional order which needs confirmation by Parlia-
ment:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which as Order in
amended is set out in the schedule to this Act is hereby schedule
confirmed and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Hexham) Act 1930.

A.D. 1930.

SCHEDULE.

URBAN DISTRICT OF HEXHAM.

*Hexham
Order.*

*Provisional Order altering a local Act and altering or
repealing provisional orders.*

WHEREAS the urban district council of Hexham are the local authority for the purposes of the Public Health Act 1875 for the urban district of Hexham and the provisions of the Hexham Local Board (Water) Act 1888 and the confirmation Acts and orders mentioned in the Schedule to this order are in force in that urban district;

And whereas under the provisions of the local Act of 1888 and orders the urban district council carry on a water undertaking and supply water within their district;

And whereas under section 4 of the local Act of 1888 that Act is to be executed by the urban district council with the powers and indemnities and according to the provisions of the Public Health Acts and those Acts are in relation to the urban district council and the several objects and purposes of the local Act of 1888 to be read and construed as if the purposes and provisions of the local Act were purposes and provisions of the Public Health Acts so far as the same are applicable thereto and except so far as any of the provisions of the Public Health Acts are expressly varied or otherwise provided for by the local Act;

And whereas the council are desirous of taking additional water and constructing and maintaining additional works for the purposes of their water undertaking;

And whereas by the local Act of 1888 as amended by the confirmation Acts and orders the Council were empowered to borrow moneys within the limits and subject to the sanction therein provided for the purposes of their water undertaking;

And whereas the Council have applied to the Minister of Health for the issue of a Provisional Order to alter or amend the local Act and confirmation Acts in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health

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Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:— A.D. 1930.

1.—(1) This order may be cited as the Hexham Order 1930 and the Hexham Order 1896 the Hexham Order 1905 and this order may be cited together as the Hexham Orders 1896 to 1930. *Hexham Order.* Short title and commencement.

(2) This order shall come into operation on the date of the Act of Parliament confirming it.

2. In this order unless the context otherwise requires—

“The Council” means the urban district council of Hexham;

“The deposited plans” means the plans deposited by the Council in the office of the Minister and of which duplicates were on the twenty-seventh day of February nineteen hundred and thirty deposited in the office of the Clerk of Parliaments House of Lords and in the Committee and Private Bill Office of the House of Commons;

“The local Act” means the Hexham Local Board (Water) Act 1888;

“The Minister” means the Minister of Health;

“The order of 1896” “the order of 1903” and “the order of 1905” mean respectively the order of the same year mentioned in the Schedule to this order.

3.—(1) In addition to any water which they are authorised to take by section 5 of the local Act the Council may by agreement take collect impound use divert and appropriate for the purpose of their water undertaking the water of certain springs or water courses which arise on or issue from the Hexhamshire Stinted Pasture (No. 2) referred to in that section and are situate about 1200 yards measured in a north-westerly direction from the collecting tank of the Council situate at the Ladle Wells or Springs referred to in the section. Power to take additional water.

(2) The Council by agreement with the Right Honourable Wentworth Henry Canning Viscount Allendale the successor in title of the person for whose protection section 8 of the local Act was enacted or his successor in title for the time being may for such term of years as may be agreed take collect impound use divert and appropriate a larger quantity of water than is specified in paragraph (1) of that section and the agreement may provide that while it is in force the provision in that paragraph which requires the water to be caused or permitted to flow through a measuring gauge need not or shall not be complied with.

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(3) The Council shall if required supply water to the owners of the lands mentioned in paragraph (2) of article 4 of this order and their tenants for domestic and agricultural purposes at such points along and near to the aqueducts conduits or lines of pipes of the Council (as well as those hereafter to be constructed as those already constructed) as shall be required by such owners but not at a greater elevation than the pressure in the pipes (which shall be iron pipes) will permit such owners being at the cost of making all connections and laying all service pipes and maintaining the same but making no payment for the water so supplied.

(4) The powers conferred by this article shall be deemed to be powers conferred by the Public Health Act 1875 and in particular section 332 of that Act (which contains a saving for water rights) and section 333 of that Act (relating to arbitration) shall so far as they may be applicable extend to any exercise by the Council of the powers conferred by this article.

Power to
construct
additional
works.

4.—(1) Subject to the provisions of this order the Council may in the lines and situation and upon the lands delineated on the deposited plans construct and maintain the following works that is to say—

(a) Work No. 1 An underground aqueduct conduit or line of pipes of capacity not exceeding that of a line of pipes eight inches in diameter alongside or in near proximity to the aqueduct conduit or line of pipes which the Council were authorised by paragraph (1) of section 6 of the local Act as modified by paragraph (4) of section 8 thereof and the grant pursuant to the said paragraph of section 8 by Wentworth Canning Blackett Beaumont to the Council dated the twenty-eighth day of February eighteen hundred and ninety-eight to construct and did construct accordingly and an underground aqueduct conduit or line of pipes alongside or in near proximity to the aqueduct conduit or line of pipes which the Council were authorised by paragraph (3) of the said section 6 to construct and did construct accordingly;

(b) Work No. 2 An underground aqueduct conduit or line or lines of pipes for the purpose of taking and conducting water from the north-west springs or water courses referred to in paragraph (1) of article 3 of this order into the line of pipes 100 yards or thereabouts distant from the intake tank of the south-eastern springs.

(2) Paragraph (4) of section 8 of the local Act (which contains provisions for the protection of Wentworth Blackett Beaumont his heirs and assigns and others) and the provisions of the said grant of the twenty-eighth day of February eighteen hundred and ninety-eight shall apply to any exercise by the Council of the powers conferred by this article so far as those powers are

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exercised upon or affect lands of which at the date of this order the representatives of Lewis Chalmers Lockhart deceased John Fleming King Lockhart and Henry Fleming Lockhart or any of them or any person or persons in trust for them or any of them as successors in title of the said Wentworth Blackett Beaumont are the owners.

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(3) In its application to the construction and repair of the works by this order authorised paragraph (4) of section 8 of the local Act shall not entitle the Council to use steam motor vehicles upon so much of the road therein mentioned as is situate upon the lands referred to in the preceding paragraph of this article or to impose thereon heavier weights than the road may be from time to time constructed to bear but the Council may reconstruct the road to bear heavier weights.

5. In the construction of the works authorised by this order the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent :

Limits of
deviation.

Provided that except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited plans.

6. The works authorised by this order shall for all purposes be deemed part of the water undertaking of the Council and the provisions of the local Act and of the order of 1896 and of the order of 1905 shall so far as the same are applicable and subject to the provisions of this order extend and apply to those works.

Works to
form part of
undertaking.

7.—(1) Article 1 of the order of 1896 which empowers the Council with the sanction of the Minister to borrow moneys for the purposes of their water undertaking shall have effect as if the words “ not exceeding in the whole the sum of four thousand pounds ” were omitted therefrom.

Amendment
of order of
1896 as to
borrowing
powers and
inquiries.

(2) In article 3 of the order of 1896 which relates to the period of repayment of moneys borrowed by virtue of that order sixty years shall be substituted for thirty years.

(3) In article 10 of the order of 1896 which relates to the costs of local inquiries “ five guineas a day ” shall be substituted for “ three guineas a day.”

8. So much of the confirmation Acts mentioned in the Schedule to this order as relates to the whole of the order of 1903 and to article 2 of the order of 1905 are hereby repealed.

Repeal.

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SCHEDULE.

CONFIRMATION ACTS AND PROVISIONAL ORDERS RELATING
TO THE URBAN DISTRICT OF HEXHAM.

Session and Chapter.	Short Title.	Order thereby confirmed.
59 & 60 Vict. c. cviii.	The Local Government Board's Provisional Orders Confirmation (No. 14) Act 1896.	The Hexham Order 1896.
3 Edw. 7. c. lviii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1903.	The Hexham Order 1903.
5 Edw. 7. c. lxxiv.	The Local Government Board's Provisional Orders Confirmation (No. 7) Act 1905.	The Hexham Order 1905.

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